3117

Executive Order

REJECTING THE BID OF G. VINTSCHGER FOR CERTAIN SHARES OF THE CAPITAL STOCK OF MARKT AND HAMMACHER COMPANY, A NEW JERSEY CORPORATION, OFFERED FOR SALE AT PUBLIC AUCTION ON JUNE 20, 1919, PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THEREOF.

By virtue of the authority vested in me by "An Act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ended June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ended June 30, 1919, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, and all other powers and authorities me hereto enabling, I do hereby, make the following determination and order:

WHEREAS, the Alien Property Custodian offered for sale at auction in the City of New York, State of New York at 2:00 P. M. on the 20th day of June, 1919, certain shares of the capital stock of Markt and Hammacher Co., a New Jersey corporation, said shares being described as follows:

ITEM I. 3,239 shares of the First Preferred Stock (out of a total of 10,000 shares outstanding, of the par value of $100 each), the same being evidenced by certificates 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 29, 30, 31, 32, 33 and 34, issued to the Alien Property Custodian.

ITEM II. 1,759 shares of Second Preferred Stock (out of a total of 4,540 shares outstanding, of the par value of $100 each), the same being evidenced by certificates 24, 25, 26, 27 and 28, issued to the Alien Property Custodian.

ITEM III. 1,129 shares of Class A Common Stock (out of a total of 3,500 shares outstanding, of the par value of $100 each), the same being evidenced by certificates 10, 11, 12 and 13, issued to the Alien Property Custodian.

ITEM IV. 2,249 shares of Class B Common Stock (out of a total of 5,250 shares outstanding, of the par value of $100 each), the same being evidenced by certificates 10, 11 and 12, issued to the Alien Property Custodian.

AND WHEREAS, the highest bid received for said stock was $203,845.00, being $116,604.00 for Item I, $42,216.00 for Item II, $11,290.00 for Item III and $33,735.00 for Item IV, which bid was made by G. Vintschger.

The Alien Property Custodian is hereby authorized and shall have the right to reject all bids made at said sale, including the bid of the said G. Vintschger, and to resell such property at public sale.

My reason for the foregoing determination and order is that the above stated price bid for the said property is inadequate and not the fair value thereof.

DONE in the District of Columbia this 18th day of July in the year of our Lord one thousand nine hundred and nineteen, and in the year of the independence of the United States, the one hundred forty-fourth.

WOODROW WILSON

[No. 3117.]